

25STCV05334 25STCV05334

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Case Number: 25STCV05334 Hearing Date: August 10, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: August

10, 2026

CASE NAME: Melia

Alvarado, et al. v. Apts Mgmt, LLC

CASE NO.: 25STCV05334

DEMURRER

WITH MOTION TO STRIKE

MOVING PARTY: Defendant

Crawford Park Financial, Inc.

RESPONDING PARTY(S): Plaintiffs Melia Alvarado, by

and through her guardian ad litem Astrid Lucero; Byron Fuentes, by and through

his guardian ad litem Astrid Lucero; Gabriela Aju Valenzuela; Gazel

Climaco-Zepeda; Kevin Climaco; Jesse Climaco, by and through his guardian ad

litem Alexander Climaco; Luis Cisneros; Joshua Sanchez, by and through his

guardian ad litem Cynthia Vasquez; Camila Delgado, by and through her guardian

ad litem Cindy Delgado; Kevin Cardose; Isaac Evaristo, by and through his

guardian ad litem Maria Ramirez; Ray Evaristo, by and through his guardian ad

litem Maria Ramirez; Abigail Evaristo, by and through her guardian ad litem

Maria Ramirez; Hazam Muhammed; Lilian Gutierrez; Amy Gutierrez, by and through her guardian ad litem Karla Diaz Guevara; and Brian Serrano, by and through his guardian ad litem Karla Diaz Guevara.

REQUESTED RELIEF:

1. Demurrer

to all causes of action pleaded by Plaintiffs Gabriela Aju Valenzuela, Lillian Gutierrez, Kevin Climaco, Hazel Climaco Zepeda, Luis Cisneros, Kevin Cardoso, and Hazam Muhammed (the Adult Plaintiffs) for failing to state sufficient facts because they are time-barred;

2. Demurrer

to all causes of action pleaded by Plaintiff Gabriela Aju Valenzuela for misjoinder;

3. Demurrer

to the sixth cause of action (intentional infliction of emotional distress), eighth cause of action (constructive eviction/will interruption of services), tenth cause of action (violation of unfair competition law) for failing to state sufficient facts;

4. Demurrer

to all causes of action as to all minor plaintiffs as incidental beneficiaries to their parents rental agreement and not tenants with contract rights;

5. Motion

to strike portions of the SAC pertaining to punitive damages and attorneys' fees.

TENTATIVE RULING:

1. Demurrers

to the SAC are OVERRULED:

2. Motion

to strike is GRANTED, with leave to amend, as to the punitive damages allegations and DENIED as to attorneys' fees;

3. Plaintiffs

to file their final amended complaint within 14 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On February 25, 2025, Plaintiffs Melia Alvarado (by and through her guardian ad litem Astrid Lucero); Byron Fuentes (by and through his guardian ad litem Astrid Lucero); Gabriela Aju Valenzuela; Hazel Climaco-Zepeda; Kevin Climaco (by and through his guardian ad litem Alexander Climaco); Jesse Climaco (by and through his guardian ad litem Alexander Climaco); Luis Cisneros; Joshua Sanchez (by and through his guardian ad litem Cynthia Vasquez); Camila Delgado (by and through her guardian ad litem Cindy Delgado); Kevin Cardoso; Isaac Evaristo (by and through his guardian ad litem Maria Ramirez); Ray Evaristo (by and through his guardian ad litem Maria Evaristo); Abigail Evaristo (by and through her guardian ad litem Maria Ramirez); Hazam Muhammed; Lilian Gutierrez; Amy Gutierrez (by and through her guardian ad litem Karla Diaz Guevara); Brian Serrano (by and through his guardian ad litem Karla Diaz Guevara) (sometimes collectively Plaintiffs) against Defendants APTS MGMT, LLC; Expo Apts, LLC; Gelber Apts, LLC; Crawford Park Financial, Inc.; Mary Joanna Crawford a/k/a Joanna Crawford; and Mark R. Crawford (sometimes collectively Defendants).

Plaintiffs allege eleven causes of action for: (1) negligence; (2) breach of implied warranty of habitability; (3) breach of the covenant of quiet enjoyment; (4) nuisance; (5) premises liability; (6) intentional infliction of emotional distress; (7) violation of Civ. Code § 1942.4; (8) constructive eviction and willful interruption of services; (9) retaliation; (10) violation of unfair competition law; and (11) breach of implied covenant of good faith and fair dealing.

According to the complaint, this is a habitability case involving real property located at 4024 and 4209 Gelber Place, Los Angeles, CA 90008 (the Properties). Plaintiffs allege that Defendants allowed two neighboring apartment buildings on Gelber Place to fall into severe disrepair for years, resulting in pervasive habitability defects including cockroach and rodent infestations, mold, plumbing failures, unsafe stairways, electrical hazards, and lack of heat. They assert that Defendants ignored repeated repair requests and government notices from LAHD and DPH identifying extensive code violations and ordering remediation. Plaintiffs claim they suffered physical ailments (such as insect bites, respiratory issues, and rashes) as well as emotional distress from living in unsafe, unsanitary, and unstable housing

conditions. They further allege that Defendants demanded full rent despite the uninhabitable conditions and engaged in hostile or retaliatory conduct when tenants complained.

On May 14, 2025, Plaintiffs filed a first amended complaint (FAC). The FAC is largely identical to the original complaint.

On January 20, 2026, Defendants Mark Crawford, Mary Crawford a/k/a Joanna Crawford, Apts Management, LLC, Gelber Apts, LLC, and Expo Apts, LLC (collectively the Apts Management Defendants) filed a demurrer with motion to strike. The court SUSTAINED the demurrer and DENIED the motion to strike with leave to amend.

On April 7, 2026, Plaintiffs filed the operative second amended complaint (SAC).

On May 7, 2026, the Apts Management Defendants filed a demurrer with motion to strike. The court ruled as follows: Demurrer to the SAC concerning Plaintiff Gabriela Aju Valenzuela is SUSTAINED; Demurrers to the SAC on statute of limitations, the sixth, eighth, and tenth causes of action are OVERRULED; motion to strike is DENIED; Apts Management Defendants to file their answer within 14 days of the court's July 13, 2026 ruling.

On May 11, 2026, Plaintiffs filed a fictitious name amendment changing Prop Mgmt LLC for DOE 1.

On May 13, 2026, Plaintiff filed requests for dismissal of Defendants Mark R. Crawford and Mary Crawford aka Joanna Crawford.

On May 13, 2026, Plaintiff filed a fictitious name amendment changing Mashcole Property Management, Inc. from DOE 2.

On May 29, 2026, Defendant Crawford Park Financial, Inc. (Crawford Park) filed the instant motion to strike. On June 1, 2026, they filed the instant demurrer to the SAC. On June 30, 2026, Plaintiffs filed oppositions to the demurrer and motion to strike. On July 2, 2026, Crawford Park filed a reply in support of their demurrer. On July 29, 2026, Plaintiffs filed an amended opposition without leave of court. On July 31, 2026, Crawford Park filed a sur-reply without leave of court.[1]

On July 27, 2026, the Apts Management Defendants filed an answer.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). The meet and confer requirement also applies to motions to strike. (CCP § 435.5.)

Here, the parties met and conferred between April 21, 2026 and May 24, 2026. (Declaration of Colleen Mulgrew ¶¶ 2-4.) This requirement is therefore met.

Demurrer –

Sufficiency of Facts

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, 147 Cal.App.4th at 747.)

;

When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94 (Frantz).)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice.

(Id. § 437.) “When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.” (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768.)

ANALYSIS:

Request for
Judicial Notice

The court GRANTS Crawford Park’s request for judicial notice of items 2 through 6 since they are part of the court file for this case. (CCP § 452(c), (d); § 453; Cal. Rules of Court, rule 3.1306(c).) However, the court DENIES the request as to item 1 because it does not sufficiently identify what document requested to be judicially noticed. (Ibid.)

Demurrer

To start, the court sets out the Plaintiffs

Plaintiff Name

Minor

Property Living/Lived

Gabriela Aju Valenzuela

N

4024, Unit 4 since 2002

Lilian Gutierrez

N

4029, Unit 2 [2011-2015] Unit 28 [2015-2021]

Amy Gutierrez

Y

4029, Unit 2 [2011-2015] Unit 28 [2015-2021]

Brian Serrano

Y

4029, Unit 2 [2013-2015] Unit 28 [2015-2021]

Hazel Climaco-Zepeda

N

4029, Unit 3 [2009-present]

Kevin Climaco

N

4029, Unit 3 [2009-present]

Jesse Climaco

Y

4029, Unit 3 [2014-present]

Luis Cisneros

N

4029, Unit 6 [2011-2020]

Melia Alvarado

Y

4029, Unit 10 [2017-2020]

Byron Fuentes

Y

4029, Unit 10 [2017-2020]

Joshua Sanchez

Y

4029 [2010-present]

Camila Delgado

Y

4029, Unit 18 [2015-present]

Kevin Cardoso

N

4029, Unit 21 [2009-present]

Isaac Evaristo

Y

4029, Unit 22 [2013-present]

Ray Evaristo

Y

4029, Unit 22 [2013-present]

Abigail Evaristo

Y

4029, Unit 22 [2017-present]

Hazam Muhammed

N

4029, Unit 26 [2003-2021]

Entire SAC –

Time-Barred

Crawford Park contends the claims are all time-barred for the adult Plaintiffs. Those Plaintiffs are: Gabriela Aju Valenzuela, Lilian Gutierrez, Hazel Climaco-Zepeda, Kevin Climaco, Luis Cisneros, Kevin Cardoso, and Hazam Muhammed (collectively, the Adult Plaintiffs). Crawford Park contends the facts on the face of the SAC show the claims accrued by December 2017 so the Adult Plaintiffs' case, filed February 25, 2025, is untimely on all claims. They add that the allegation these claims somehow relate back to a filing in a separate case is unsupported by law.

Plaintiffs argue that equitable tolling applies to these claims.

Crawford Park replies that equitable tolling does not apply.

The limitations periods for each cause of action, in order of appearance, are as follows:

The statute of limitations for negligence is two years. (CCP § 335.1.)

The statute of limitations for breach of implied warranty of habitability is four years. (CCP §§ 337 and 337.2 [breach of written lease and

abandonment of property]; See *Green v.*

Superior Court (1974) 10 Cal.3d 616, 624 ["Our holding in this case reflects our belief that the application of contract principles, including the mutual dependency of covenants, is particularly appropriate in dealing with residential leases of urban dwelling units."])

The statute of limitations for breach of the covenant of quiet enjoyment is four years. (CCP §§ 337 and 337.2.)

The statute of limitations for nuisance is three years. (CCP § 338(b).) The statute of limitations for premises liability is two years. (CCP § 335.1.)

The statute of limitations for intentional infliction of emotional distress is two years. (CCP § 335.1; *Wassmann v. South Orange County Community College District* (2018) 24 Cal.App.5th 825, 852-853.)

The statute of limitations for violation of Civ. Code § 1942.4 is three years. (CCP § 338.)

The statute of limitations for constructive eviction and willful interruption of services is four years. (CCP §§ 337 and 337.2.)

The statute of limitations for retaliation (Civ. Code § 1942.5) is three years. (CCP § 338.)

The statute of limitations for violation of unfair competition law is four years. (*Cortez v. Purolator Air Filtration Products Co.* (2000) 23 Cal.4th 163, 178-179.)

The statute of limitations for breach of implied covenant of good faith and fair dealing is four years. (CCP §§ 337 and 337.2.)

i.

Equitable tolling

"Equitable tolling is a judicially created doctrine that, where applicable, will suspend or extend a statute of limitations as necessary to ensure fundamental practicality and fairness." (*Long v. Forty Niners Football Co., LLC* (2019) 33 Cal.App.5th 550, 554-555 [internal quotations omitted].) It applies when an injured person has

several legal remedies and, reasonably and in good faith, pursues one. (Id. at p. 555.) “Thus, it may apply where one action stands to lessen the harm that is the subject of a potential second action; where administrative remedies must be exhausted before a second can proceed; or where a first action, embarked upon in good faith, is found to be defective for some reason.” (Ibid.)

A plaintiff seeking the benefit of equitable tolling must show: “timely notice, and lack of prejudice, to the defendant, and reasonable and good faith conduct on the part of the plaintiff.” (Long, supra, 33 Cal.App.5th at p. 555.) Timely notice means the first claim was filed within the statutory period and must alert the defendant in the second claim of the need to begin investigating the facts which form the basis for the second claim. (Hopkins v. Kedzierski (2014) 225 Cal.App.4th 736, 747.) “The second prerequisite essentially translates to a requirement that the facts of the two claims be identical or at least so similar that the defendant’s investigation of the first claim will put him in a position to fairly defend the second.” (Ibid.) While the third element is not clearly defined, there is a timing component where quick refiling satisfies it. (Ibid.)

“Where a claim is time-barred on its face, the plaintiff must specifically plead facts that would support equitable tolling.” (Long, supra, 33 Cal.App.5th at p. 555.)

Here, the requirements for equitable tolling are met. First, Plaintiffs allege a prior claim filed within the statutory period where Plaintiffs asserted the same claims as in this action. (SAC ¶ 40.) This satisfies the first element. Second, Plaintiffs allege the claims were the same, which satisfies the second element. (SAC ¶ 40.) Third, Plaintiffs allege that after receiving an adverse ruling on their demurrer due to misjoinder of Crawford Park, they dismissed those claims. (SAC ¶¶ 42, 43, 44.) It appears that the tolling therefore applied between the initial filing on April 28, 2023 and the ruling on the demurrer on December 12, 2024. Two months later, Plaintiffs refiled this second action. In short, it does not appear untimely on its face.

Accordingly, the court **OVERRULES** Crawford Park’s demurrer to the entire SAC on this ground.

Entire Complaint – Gabriela Aju Valenzuela
Misjoinder

Crawford Park did not develop this argument in their

demurrer. The court considers this abandoned. (See Lafferty v. Wells Fargo Bank (2013) 213 Cal. App. 4th 545, 571-72 [“When a point is asserted without argument and authority for the proposition, ‘it is deemed to be without foundation and requires no discussion by the reviewing court.’”])

Accordingly, the court OVERRULES Crawford Park’s demurrer on this ground.

Sixth Cause of
Action – Intentional Infliction of Emotional Distress (IIED)

Crawford Park did not develop this argument in their demurrer. The court considers this abandoned. (See Lafferty v. Wells Fargo Bank (2013) 213 Cal. App. 4th 545, 571-72 [“When a point is asserted without argument and authority for the proposition, ‘it is deemed to be without foundation and requires no discussion by the reviewing court.’”])

Accordingly, the court OVERRULES Crawford Park’s demurrer on this ground.

Eighth Cause of
Action – Willful Interruption of Services

Crawford Park did not develop this argument in their demurrer. The court considers this abandoned. (See Lafferty v. Wells Fargo Bank (2013) 213 Cal. App. 4th 545, 571-72 [“When a point is asserted without argument and authority for the proposition, ‘it is deemed to be without foundation and requires no discussion by the reviewing court.’”])

Accordingly, the court OVERRULES Crawford Park’s demurrer on this ground.

Tenth Cause of
Action – Violation of Unfair Competition Law

Crawford Park did not develop this argument in their demurrer. The court considers this abandoned. (See Lafferty v. Wells Fargo Bank (2013) 213 Cal. App. 4th 545, 571-72 [“When

a point is asserted without argument and authority for the proposition, 'it is deemed to be without foundation and requires no discussion by the reviewing court.'")])

Accordingly, the court OVERRULES Crawford Park's demurrer on this ground.

Motion to Strike

Crawford Park moves to strike the following portions of the SAC:

1. ¶ 94, 20:23-28: "Defendants' tortious breach of their duties was willful,

deliberate, malicious, and oppressive, amounting to despicable conduct in

conscious disregard of Plaintiffs' rights that subjected Plaintiffs to cruel and

unjust hardship, so as to entitle Plaintiffs to an award of punitive and

exemplary damages. Plaintiffs are therefore entitled to punitive and

exemplary damages against Defendants in an amount sufficient to punish

them and deter them and others from engaging in similar conduct, as

determined at trial."

2. ¶ 114, 23:27-24:4: "Defendants' tortious breach of the covenant of quiet

enjoyment was grossly negligent, malicious, and/or oppressive, amounting

to despicable conduct in conscious disregard of Plaintiffs' rights, wellbeing,

and safety in that it subjected Plaintiffs to cruel and unjust hardship,

so as to entitle Plaintiffs to an award of punitive and exemplary damages

against Defendants in an amount sufficient to punish them and deter them

and others from engaging in similar conduct, as determined at trial to the

extent allowed by law.”

3. ¶ 115, 24:5-6: “Plaintiffs are entitled to recover their reasonable attorneys’

fees incurred in bringing and litigating this matter, and costs of the suit

herein.”

4. ¶ 125, 25:20-24: “Defendants’ failure to abate the nuisance was

unreasonable, willful, deliberate, malicious, and oppressive, amounting to

despicable conduct that subjected Plaintiffs to cruel and unjust hardship in

conscious disregard of their rights, so as to entitle Plaintiffs to an award of

punitive and exemplary damages. against Defendants in an amount

sufficient to punish them and deter them and others from engaging in similar

conduct, as determined at trial.”

5. ¶ 126, 25:25-26: “Plaintiffs are entitled to recover their reasonable

attorneys’ fees incurred in bringing and litigating this matter and the costs

of the suit herein.”

6. ¶ 135, 27:6-10: “Defendants’ tortious breach of their duty of care was

willful, malicious, and oppressive, amounting to despicable conduct that

subjected Plaintiffs to cruel and unjust hardship, so as to entitle Plaintiffs to

an award of punitive and exemplary damages against Defendants in an

amount sufficient to punish them and deter them and others from engaging

in similar conduct.”

7. ¶ 136, 27:11-12: “Plaintiffs are entitled to recover their reasonable

attorneys’ fees incurred in bringing and litigating this matter and costs of

the suit.”

8. ¶ 146, 29:9-13: “Further, in failing to correct the

defects within a reasonable

time, or at all, despite Plaintiffs' and/or Plaintiffs'
respective parents'

numerous requests to Defendants, as alleged in this
Complaint, Defendants'

conduct was willful, deliberate, malicious, and oppressive,
amounting to

despicable conduct that subjected Plaintiffs to cruel and
unjust hardship in

conscious disregard of their rights, so as to entitle
Plaintiffs to an award of

punitive and exemplary damages. Plaintiffs are entitled to
punitive and

exemplary damages against Defendants."

9. ¶ 167, 32:11: "Each Plaintiff is also entitled to
reasonable attorneys' fees

and costs."

10. Page 35:26 - "3. For punitive damages in an amount to be
proven at trial."

11. Page 36:11 - "3. For punitive damages in an amount to be
proven at trial."

12. Page 36:12-13: "4. Reasonable attorneys' fees and costs
as the prevailing

party for breach of a covenant implied in a written
agreement."

13. Page 36:20 - "3. For punitive damages in an amount to be

proven at trial.”

14. Page 36:27 - “3. For exemplary and punitive damages in an amount to be

proven at trial.”

15. Page 37:4 - “2. For punitive damages in an amount to be proven at trial.”

16. Page 37:21-23 - “3. For punitive damages in an amount of not less than

\$100 nor more than \$2,000 for each retaliatory act where the lessor or agent

has been guilty of fraud, oppression, or malice with respect to that act per

Civil Code 1942.5(h).”

17. Page 38:1-2-“2. Reasonable attorneys’ fees, pursuant to Code of Civil

Procedure section 1021.5, in an amount to be determined after trial.”

18. Page 38:9 - “2. For reasonable attorneys’ fees, where allowed by law.”

Punitive Damages

Crawford Park contends Plaintiffs insufficiently alleged facts supporting punitive damages and did not allege acts by corporate leaders.

Plaintiffs argue they sufficiently alleged facts supporting punitive damages via Crawford Park’s endangering Plaintiffs’ health and safety through the dilapidated conditions of the subject properties. They argue further that they allege liability of the corporate entities via their agents. Finally, they argue that liability for punitive damages is appropriately decided by the jury.

Crawford Park did not file a reply in support of the motion to strike.

To obtain punitive damages, a plaintiff must plead sufficient facts in support of punitive damages. (See *Hilliard v. A.H. Robins Co.* (1983) 148 Cal.App.3d 374, 391-92.) In addition, punitive damages are allowed only where "it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code, § 3294(a).) Courts have viewed despicable conduct as conduct "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. (*Scott v. Phoenix Schools, Inc.*, (2009) 175 Cal.App.4th 702, 715.) Further, Civil Code § 3294(c) provides the definition of malice, oppression, and fraud. Malice is "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Ibid.) Oppression is "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Ibid.) Fraud is "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Ibid.)

Subsection (b) of Civil Code § 3294 states:

An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.

In *Stoiber*

v. *Honeychuck*, the premises was so dilapidated that it needed to be torn down. ((1980) 101 Cal.App.3d 903, 912 [describing the following defects identified by the Kern County health Department: "heavy cockroach infestation, broken interior walls broken deteriorated flooring on front porch, falling

ceiling, deteriorated, overfused electrical wiring, lack of proper plumbing connection to sewage system in bathroom, sewage under bathroom floor, leaking roof, broken, windows, and fire hazard.”)) The Court there found that the plaintiff pled sufficient facts to support her prayer for punitive damages because the defendant had actual knowledge of defective conditions in the premises, acted with full knowledge of the consequences thereof and the damage being caused to plaintiff, and their conduct was willful, oppressive, and malicious. (Id. at p. 920.)

Here, as in *Stoiber*, Plaintiffs alleged that Crawford Park had actual knowledge of the defects, that the defects were causing Plaintiff damages, and that their conduct was willful, oppressive, and malicious. (SAC ¶ 6; see also SAC ¶¶ 55-72 [multiple reports from governmental inspections].) However, Plaintiffs did not allege facts showing corporate ratification by Crawford Park. Instead, Plaintiffs allege, on information and belief, that various unnamed agents acted. (SAC ¶¶ 49, 78.) This is insufficient.

Accordingly, the court GRANTS the motion to strike punitive damages.

Attorneys' Fees

There is no argument supporting this request. The court considers it abandoned. [See, e.g., *Atchley v. City of Fresno* (1984) 151 Cal. App. 3d 635, 647 [“Where a point is merely asserted by appellant's counsel without any argument of or authority for the proposition, it is deemed to be without foundation and requires no discussion by the reviewing court.”]]

Accordingly, the court DENIES the motion to strike as to attorneys' fees request.

Leave to Amend

Leave to amend should be liberally granted if there is a reasonable possibility an amendment could cure the defect.² (*County of Santa Clara v. Superior Court* (2022) 77 Cal.App.5th 1018,1035.)³ The Plaintiff has the burden of demonstrating that leave to amend should be granted, and that the defects can be cured by amendment. (“Plaintiff must show in what manner he can amend his

complaint and how that amendment will change the legal effect of his pleading.”
(Goodman v. Kennedy (1976) 18 Cal.3d
335, 349).

Here, leave to amend is warranted because the aforementioned
defect is reasonably capable of curing.

Accordingly, the court GRANTS one final opportunity to
amend.

CONCLUSION:

For
the foregoing reasons, the court decides the pending motion as follows:

1. Demurrers

to the SAC are OVERRULED:

2. Motion

to strike is GRANTED, with leave to amend, as to the punitive damages
allegations and DENIED as to attorneys’ fees;

3. Plaintiffs

to file their final amended complaint within 14 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 10, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

The court declines to consider both the amended opposition and the sur-reply.